

Sonika Wadhwa And Others vs Union Territory Of J&K And Another on 13 July, 2022

Author: Vinod Chatterji Koul

Bench: Vinod Chatterji Koul

HIGH COURT OF JAMMU, KASHMIR AND LADAKH
AT JAMMU

CRM(M) 95/2022

Sonika Wadhwa and others

.....Petitioner(s)

Through:- Mr. Aseem Kumar Swaney, Advocate

v/s

Union Territory of J&K and another

.....Respondent(s)

Through:- Mr. Mr. Amit Gupta, AAG
Mr. A. G. Sheikh, Advocate

Coram:

HON'BLE MR. JUSTICE VINOD CHATTERJI KOUL, JUDGE

ORDER

1. Through the medium of the instant petition, petitioners seek quashment FIR No.30/2017 registered at Police Station, Women Cell Jammu for offences punishable under Sections 498/109/406 Cr.P.C which has culminated into final report of the charge sheet No. 45/2017 dated 26.12.2017 titled State vs. Vivek Wadhwa and others, pending in the Court of learned Special Municipal Mobile Magistrate, Jammu.

2. The parties are stated to have entered into a compromise and settled their disputes and differences.

3. The case in brief is that petitioner No. 1 and petitioner No. 2 were married to each other on 20.01.2014 and due to matrimonial discord/miss-understandings petitioner No. 1 filed a petition under the provisions of J&K Protection of Women from Domestic Violence Act, 2010 2 CRM(M) 95/2022 and also got an FIR No. 30/2017 registered against the petitioner Nos. 2 to 6, which after investigation culminated into the final report challan bearing No. 45/2017 dated 26.12.2017 pending in the Court of learned Special Municipal Mobile Magistrate, Jammu titled as State vs. Vivek Wadhwa and others.

4. It is stated that petitioner Nos. 1 & 2 have filed a joint petition under Section 13-B (1) of Hindu Marriage Act, 1955 for a decree of divorce by mutual consent.

5. During the pendency of this petition, the parties have approached this Court and submitted that the parties have resolved all their issues and arrived at an amicable settlement. Compromise deed has also been filed.

6. Learned counsel for the petitioner submits that the disputes and differences have been amicably settled between the parties and memo of compromise also executed thereof, as such, prays for disposal of the instant petition and consequently, quashment of The statements of the parties have already been recorded in support of the compromise deed before the Registrar Judicial of this Court.

7. Thus, in view of the amicable settlement between the parties, it would be appropriate and in the interest of justice to put an end to the proceedings while quashing charge sheet No. 45/2017 dated 26.12.2017 therefore, charge sheet No. 45/2017 dated 26.12.2017 titled State vs. Vivek Wadhwa and others, pending in the Court of learned Special Municipal 3 CRM(M) 95/2022 Mobile Magistrate, Jammu arising out of FIR No. 30/2017 registered with Police Station Women Cell, Jammu shall stand quashed.

8. The petition stands disposed of, accordingly, along with connected applications.

(VINOD CHATTERJI KOUL) JUDGE Jammu 13.07.2022 Bir Whether approved for reporting?
Yes/No